

LEGAL DESCRIPTION
3.178 Ac. Tract

A tract of land located in Section 27, T. 28 N., R. 1 E., U.S.M.S. surveys, Bannock County, Idaho, and being a portion of U.S.M.S. tract 9-11 lying west of U.S. Highway 25 and being more particularly described as follows to wit:

Beginning at the northeast corner of this tract whence the west R/W P.C. station of U.S. Highway 25 marked by a R/W marker Sta. 210+34.08 bears N. 33° 29' 15" E., 218.22 feet;

Thence from aforementioned point of beginning S. 33° 29' 15" E., 341.39 feet along the west R/W of U.S. Highway 25 to the southeast corner of this tract;

Thence S. 57° 43' 20" E., 341.01 feet along a community irrigation ditch to the southwest corner of this tract;

Thence N. 8° 49' 40" E., 119.43 feet to an angle point;

Thence N. 18° 03' 45" E., 118.85 feet to an angle point;

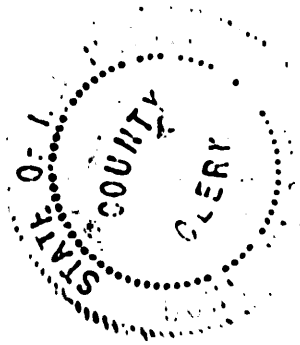
Thence N. 33° 37' 10" E., 271.71 feet to the northwest corner of this tract said corner being the centerline of a concrete irrigation ditch;

Thence along the centerline of a concrete irrigation ditch N. 60° 11' 20" E., 221.00 feet to the point and place of beginning containing 3.178 acres of land more or less.

Above tract subject to a 6 foot irrigation ditch easement parallel and adjacent to the south property line and a 7 foot irrigation ditch easement adjacent to and parallel with the north property line.

SUBJECT to the following restrictions, which shall run with the land;

- a) Any residence must contain a minimum of 1400 square feet of living area, and shall be located on a lot containing not less than one acre;
- b) Any duplex erected shall contain at least 2000 square feet of living space, and must be located on a lot of at least two acres;
- c) Only single-family residences or duplexes may be constructed with or without servant quarters;
- d) Trailers or mobile homes shall not be used as residences except during the construction of a permanent residence, or the period of two years, whichever is less;
- e) Camper trailers are not prohibited from being parked on the land as long as they are not used as a residence;
- f) Junk yards or commercial animal husbandry operations may not be conducted on the premises;
- g) Other than household pets, the only animals that may be kept on the premises shall be horses, cattle and poultry fowl;
- h) No more than three horses or cattle per acre, in the aggregate, shall be maintained on the premises;
- i) No more than twelve chickens or other poultry fowl shall be maintained per acre, in the aggregate.



State of N. Mex., Co. of Bannock
RECEPTION NO. 7217
I hereby
certify that this instrument was filed
for record and duly recorded on:

JAN 5 1978

at 11:18 a/clock A.M. in Book 246 Page 477 of the
records of said county. County
DELLA GARCIA BARNCASTLE Clerk
BY: Martha Jones Deputy

78 JAN 5
10:18 A.M.

WARRANTY DEED (Joint Tenants)

Jack I. Blackwell and Sandra J. Blackwell, his wife

Office P. located and Lot 1 A. located, etc. etc.

533 & 1400.
Las Cruces, N.M. 88001

etc.

to give unto the following described and more or less

State of

see attached legal description attached hereto

with warranty covenants

WITNESS OUR HANDS and SEAL this 17th day of December, 1977

Jack I. Blackwell
Jack I. Blackwell

Sandra J. Blackwell
Sandra J. Blackwell

ACKNOWLEDGMENT FOR NATURAL PERSONS

STATE OF NEW MEXICO

COUNTY OF SAN JUAN

The foregoing instrument was acknowledged before me this

17th day of DECEMBER, 1977.

by Jack I. Blackwell and Sandra J. Blackwell, his wife

My commission expires

Notary Public

FOR RECORDER'S USE ONLY

NOTARY SEAL

ACKNOWLEDGMENT FOR CORPORATION

STATE OF NEW MEXICO

COUNTY OF

The foregoing instrument was acknowledged before me this

day of

by (Name of Officer)

(Title of Officer)

(Name of Corporation Acknowledging)

a (State of Incorporation) corporation, on behalf of said corporation

My commission expires:

Notary Public

Las Cruces Abstract & Title Co.

THE VALLIANT CO. ALBUQUERQUE, N. M. 80001

489